

Anwar pleads not guilty

KUALA LUMPUR: Datuk Seri Anwar Ibrahim yesterday walked out of a court on a RM20,000 personal bond without surety after he pleaded not guilty to a charge of sodomising his former aide Mohamad Saiful Bukhari Azlan in June.

The Parti Keadilan Rakyat (PKR) adviser was charged under Section 377B of the Penal Code which, under ordinary circumstances, does not allow bail for an accused.

Sessions court judge S.M. Komnath Suppiah, in granting Anwar's release on a personal bond, said: "I don't think there is any likelihood of Anwar absconding."

Earlier, Solicitor-General Datuk Idrus Harun, who led the prosecution team, did not object to Anwar being allowed bail but asked the amount to be set at RM20,000 in one surety and Anwar's international passport to be impounded.

He said the charge faced by Anwar was serious and was non-bailable but under the law, the court could exercise its discretion to allow bail.

Lead defence counsel Sulaiman Abdullah said the judge could use her discretion under Section 388(2) of the Criminal Procedure Code to release his client on personal bond without imposing any fixed sum.

He said it was inconceivable that Anwar would not turn up in

PKR ADVISER OUT ON RM20,000 PERSONAL BOND AFTER BEING CHARGED WITH SODOMY

court and would tamper with the witnesses. Besides, Anwar would be contesting the upcoming Permatang Pau by-election, he said.

"With his long service to the country and his public standing in the government and also his cooperation with the police and authorities during the investigation of the current sodomy allegation, there is no likelihood of him absconding," Sulaiman said.

He urged the court to strongly exercise its discretion to eliminate any traces of a political trial.

Before deciding, Komnath asked Brickfields district police CID chief DSP Jude Pereira whether Anwar had cooperated with the police during the investigation. He said "yes".

Anwar, who turns 61 on Sunday, was charged with sodomising Saiful, 23, between 3.01pm and 4.30pm on June 26 at Unit 11-5-1 Desa Damansara Condominium, Jalan Setiakash, Bukit Damansara here.

The offence of carnal intercourse against the order of nature under Section 377B of the Penal Code carries up to 20 years jail and

whipping on conviction. After the charge was read to him, Anwar said: "This is malicious and treacherous defamation. I am not guilty."

Idrus was assisted by Prosecution Unit head Datuk Mohd Yusof Zainal Abiden and deputy public prosecutors Mohamed Hanafah Zakaria and Shamsul Sulaiman.

Anwar was represented by nine lawyers - Sulaiman, R. Sivarama, Leela Jeyamani Jesuthasan, S.N. Nair, Edmund Bon Tai Soon, Saiful Izham Ramli, Amer Hamzah Arshad, Lathiefa Beebi Koya and Mohd Radzian Jalaludin.

Counsel acting for the Bar Council were Raipal Singh and George Varughese, and Zamri Idrus held a watching brief for complainant Saiful.

Also present were A. Sahadeva, Chan Weng Keng, Ann Chuah Siew Fan and Seira Sache - lawyers representing the International Federation for Human Rights, Forum Asia, and Human Rights Watch.

The 24-minute proceedings went

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Quiet please ... Anwar, hand-in-hand with Wan Azizah, appeals to his supporters for calm outside the sessions court, where he was charged with sodomy, yesterday.